

****October 21, 2024****

****Data Processing in the Electoral Context****

In the context of the parliamentary and presidential elections taking place in November and December 2024, the National Supervisory Authority recommends that all entities involved in this process pay increased attention to compliance with the legislation regarding the protection of personal data, to ensure that personal data is used responsibly and that the rights of the data subjects are respected. The organization and conduct of the parliamentary and presidential elections are primarily regulated by:

- Law no. 208/2015 on the election of the Senate and the Chamber of Deputies, as well as for the organization and functioning of the Permanent Electoral Authority, with subsequent amendments and completions,
- Law no. 370/2004 for the election of the President of Romania, republished, with subsequent amendments and completions,
- Law no. 288/2015 on voting by mail, as well as the amendment and completion of Law no. 208/2015 on the election of the Senate and the Chamber of Deputies, as well as for the organization and functioning of the Permanent Electoral Authority, with subsequent amendments and completions,
- Government Emergency Ordinance no. 98/2024 regarding certain measures for the organization and conduct of the elections for the President of Romania in 2024 and the elections for the Senate and the Chamber of Deputies in 2024

- decisions of the Permanent Electoral Authority, such as:

- Government Decision no. 1.034/2024 regarding the approval of the calendar of actions within the electoral period of the elections for the Senate and the Chamber of Deputies in 2024
- Decision of the Permanent Electoral Authority no. 21/2024 regarding the approval of the models of the candidacy proposal, the model of the declaration of acceptance of the candidacy, and the model of the declaration of withdrawal from candidacy that will be used in the elections for the President of Romania in 2024
- Decision of the Permanent Electoral Authority no. 22/2024 regarding the approval of the accreditation procedure, the models of the accreditation documents, and the models of the badges for accredited persons at the elections for the President of Romania in 2024
- Decision of the Permanent Electoral Authority no. 31/2024 regarding the approval of the accreditation procedure, the models of the accreditation documents, and the models of the badges for accredited persons at the elections for the Senate and the Chamber of Deputies in 2024
- Decision of the Permanent Electoral Authority no. 32/2024 regarding certain measures for the proper organization and conduct of the elections for the President of Romania in 2024 and the elections for the Senate and the Chamber of Deputies in 2024, as well as for the amendment of certain decisions of the Permanent Electoral Authority
- Decision of the Permanent Electoral Authority no. 29/2020 regarding the approval of the implementation of the blockchain technical solution in the IT System for monitoring voter attendance and preventing illegal voting and in the IT System for centralizing data from the minutes regarding the recording of voting results, as well as the amendment and completion of certain decisions of the Permanent Electoral Authority
- Decision of the Permanent Electoral Authority no. 25/2020 for the approval of the methodological norms regarding the organization and functioning of the IT System for centralizing data from the minutes regarding the recording of voting results, as well as certain measures regarding the functioning of the IT application for the distribution and assignment of mandates, at the elections for the Senate and the Chamber of Deputies
- Decision of the Permanent Electoral Authority no. 23/2020 regarding the approval of the video monitoring procedure of the polling station premises abroad at the elections for the Senate and the Chamber of Deputies

- decisions of the Government, such as:

- Government Decision no. 1.036/2024 regarding the establishment of the technical measures

necessary for the proper organization and conduct of the elections for the Senate and the Chamber of Deputies in 2024

- Government Decision no. 1.034/2024 regarding the approval of the calendar of actions within the electoral period of the elections for the Senate and the Chamber of Deputies in 2024

Regarding the processing of personal data, we specify that, starting from May 25, 2018, Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation – hereinafter referred to as "GDPR") applies.

Thus, Article 4, paragraph 7 of the GDPR defines the controller as the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of processing are determined by Union law or by the law of the Member State, the controller or the specific criteria for its designation may be provided for by Union law or by the law of the Member State.

Therefore, according to legal provisions, it follows that the following may qualify as a personal data controller:

- political parties
- organizations of citizens belonging to national minorities
- political alliances
- electoral alliances
- independent candidates

Regarding the processing of data in the context of parliamentary and presidential elections, in relation to the specific applicable regulations, it follows that this is carried out based on the provisions of Article 6 paragraph (1) letter c) of the GDPR, according to which processing is lawful if it is necessary for the fulfillment of a legal obligation incumbent upon the operator.

In relation to the provisions of:

- Decision of the Permanent Electoral Authority no. 12/2020 regarding the approval of the Methodology for the preparation and submission of candidacy files and lists of supporters for the elections for the Senate and the Chamber of Deputies, issued under the provisions of Article 561 paragraph (2) and Article 104 paragraphs (1) and (2) of Law no. 208/2015, with subsequent amendments and completions,
- Law no. 208/2015 regarding the election of the Senate and the Chamber of Deputies, as well as for the organization and functioning of the Permanent Electoral Authority, with subsequent amendments and completions,
- Decision of the Permanent Electoral Authority no. 21/2024 regarding the approval of the models of the candidacy proposal, the model of the declaration of acceptance of the candidacy, and the model of the declaration of withdrawal from the candidacy that will be used in the elections for the President of Romania in 2024
- Law no. 370/2004 for the election of the President of Romania, republished, with subsequent amendments and completions,

it follows that political parties, organizations of citizens belonging to national minorities, political alliances, electoral alliances, and independent candidates process personal data as operators, for purposes such as:

- submitting candidacy files to the Central Electoral Bureau or to the competent constituency electoral bureaus
- submitting lists of supporters

Thus, the aforementioned normative acts establish:

- the model of the list of candidates for the Senate/Chamber of Deputies which contains the following categories of personal data:
 - name and surname

- personal numeric code
- place and date of birth
- residence according to the identity document
- name, series, and number of the identity document
- occupation
- profession
- political affiliation
- political or electoral alliance
- signature
- the model of the list of supporters for the Senate/Chamber of Deputies, respectively for the election of the President of Romania in 2024, according to the applicable regulations, which contains the following categories of personal data:
 - name and surname
 - date of birth
 - address
 - name, series, and number of the identity document
 - personal numeric code
 - signature
 - political or electoral alliance
- the model of the application for registration of the independent candidacy for the Senate/Chamber of Deputies, which contains the following categories of personal data:
 - name and surname
 - personal numeric code
 - place of birth
 - date of birth
 - name, series, and number of the identity document
 - occupation
 - profession
 - signature
- the model of the declarations of acceptance of candidacy for the Senate/Chamber of Deputies, which contains the following categories of personal data:
 - name and surname
 - personal numeric code
 - occupation
 - profession
 - political affiliation
 - signature
 - political or electoral alliance
- the model of the declaration of withdrawal from candidacy for the Senate/Chamber of Deputies, which contains the following categories of personal data:
 - name and surname
 - personal numeric code
 - residence according to the identity document
 - political affiliation
 - signature
 - political or electoral alliance
- the model of the candidacy proposal (including independent) for the election of the President of Romania in 2024, which contains the following categories of personal data:
 - name, surname
 - place of birth
 - date of birth

- marital status
 - residence
 - education
 - occupation
 - profession
 - signature
 - political party, organization of citizens belonging to national minorities, political alliance, electoral alliance, as applicable
- the model of the declaration of acceptance of candidacy for the election of the President of Romania in 2024, which contains the following categories of personal data:
 - name, surname
 - place of birth
 - date of birth
 - marital status
 - residence
 - education
 - occupation
 - profession
 - signature
 - political party, organization of citizens belonging to national minorities, political alliance, electoral alliance, as applicable
 - the model of the declaration of withdrawal from candidacy for the election of the President of Romania in 2024, which contains the following categories of personal data:
 - name, surname
 - place of birth
 - date of birth
 - marital status
 - residence
 - education
 - occupation
 - profession
 - signature
 - political party, organization of citizens belonging to national minorities, political alliance, electoral alliance, as applicable

Therefore, the processing of personal data must have only in compliance with the provisions of Articles 6 or 9 of the GDPR and the processing principles provided by Article 5 of the GDPR.

If operators decide to carry out personal data processing based on the consent of individuals, we emphasize that, regarding the obtaining of such consent and the proof of its existence, it is necessary to comply with the conditions set forth in Article 7 in conjunction with Article 4, point 11 of the GDPR. Thus, Article 4, point 11 of the GDPR specifies that this means any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which they signify agreement, by a statement or by a clear affirmative action, to the processing of personal data concerning them.

Furthermore, Article 7 of the regulation provides that:

“(1) Where processing is based on consent, the controller must be able to demonstrate that the data subject has given consent to the processing of their personal data.

(2) If the data subject's consent is given in the context of a written declaration that also concerns other matters, the request for consent must be presented in a manner that clearly distinguishes it from other matters, in a form that is intelligible and easily accessible, using clear and plain language. No part of

the declaration that constitutes a violation of this regulation is binding.

(3) The data subject has the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before giving consent, the data subject is informed of this right. The withdrawal of consent is as easy as giving it.

(4) When assessing whether consent has been freely given, account shall be taken of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of that contract.”

Additionally, Recital (32) of the GDPR states the following: “Consent should be given by a clear affirmative act establishing a freely given, specific, informed, and unambiguous indication of the data subject's agreement to the processing of personal data concerning them, such as a written statement, including in electronic form, or an oral statement. This could include ticking a box when visiting a website, choosing technical parameters for information society services, or any other statement or action that clearly indicates in this context the data subject's acceptance of the proposed processing of their personal data. Therefore, the absence of a response, pre-ticked boxes, or the absence of an action should not constitute consent.”

As such, obtaining the consent of the data subject, to the extent that processing occurs on the basis of it, must meet the aforementioned conditions of the GDPR and respect the principles of personal data processing.

For any of the purposes for which operators process personal data, they have, primarily, the following obligations:

- informing the data subjects;
- respecting the rights of data subjects;
- ensuring the security and confidentiality of the data;
- notifying security breaches in accordance with Article 33 of the Regulation;
- designating a data protection officer, where applicable;
- keeping a record of personal data processing activities;
- assessing the impact on data protection, if applicable.

Thus, we emphasize that informing data subjects must be carried out, regardless of the basis for data processing, namely consent or other legal conditions for processing provided by Articles 6, 9, and 10, depending on the nature of the data and the categories of data collected and processed.

Thus, Article 12 of the GDPR provides that the controller takes appropriate measures to provide the data subject with any information referred to in Articles 13 and 14 (depending on how the data is obtained, namely directly from the data subject or indirectly, from another controller) and any communications under Articles 15-22 and 34 regarding processing, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language.

We note that the Regulation does not impose a specific method of informing data subjects, leaving it to the discretion of the controllers to choose appropriate methods of providing information, such as through posting on a website, displaying, or in writing.

On the other hand, we specify that Article 5 of the GDPR establishes a series of principles that must be respected in the processing of data. Among these is the principle regarding the processing of data that is adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ("data minimization") and the processing of data in a manner that ensures an appropriate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by taking appropriate technical or organizational measures ("integrity and confidentiality").

We also emphasize that the controller is responsible for complying with these principles and can demonstrate this compliance.

At the same time, operators have the obligation to respect the rights of data subjects, regulated in Chapter III of Regulation (EU) 2016/679, such as: the right to information, the right of access, the right to rectification, the right to erasure ("the right to be forgotten"), the right to restrict processing, the right to object, the right not to be subject to a decision based solely on automated processing, and the right to lodge a complaint with a supervisory authority.

Regarding the responsibility of the operator, Article 24 of the GDPR provides that: "Taking into account the nature, scope, context, and purposes of the processing, as well as the risks with varying degrees of probability and severity for the rights and freedoms of natural persons, the operator implements appropriate technical and organizational measures to ensure and to be able to demonstrate that the processing is performed in accordance with this regulation. These measures are reviewed and updated as necessary."

Additionally, in certain situations, among the obligations of the operator is the designation of a data protection officer. The General Data Protection Regulation contains specific provisions regarding the designation of the data protection officer, their role, and responsibilities.

In this context, we specify that, according to the provisions of Article 37 paragraph (1) of the GDPR, the designation of a data protection officer is mandatory when:

- a) the processing is carried out by a public authority or body, except for courts acting in their judicial capacity;
- b) the core activities of the operator or of the processor appointed by the operator consist of processing operations which, by their nature, scope, and/or purposes, require regular and systematic monitoring of data subjects on a large scale;
- c) the core activities of the operator or of the processor appointed by the operator consist of large-scale processing of special categories of data or of personal data relating to criminal convictions and offenses.

In light of the above, we specify that political parties, independent candidates, organizations of citizens belonging to national minorities, political alliances, electoral alliances (as data operators) may process personal data in the context of parliamentary and presidential elections and conducting political campaigns, strictly respecting the applicable legal regulations in the electoral field and the legal provisions relevant to the protection of personal data, applying the principles of processing (especially the principle of purpose limitation, explicit and legitimate, data minimization, and storage limitation), including the principle of prior information of data subjects and data security measures, in accordance with the provisions of the GDPR.

At the same time, it is worth noting that since 2019, the European Data Protection Board (EDPB) has stated, in Declaration 2/2019 regarding the use of personal data in political campaigns, that: "Compliance with data protection rules, including in the context of electoral activities and political campaigns, is essential for protecting democracy. It is also a means of maintaining citizens' trust and the integrity of elections. Before upcoming electoral deadlines, data protection authorities are committed to monitoring and, if necessary, enforcing data protection principles in the context of elections and political campaigns, such as transparency, purpose limitation, proportionality, and security, as well as the exercise of the rights of data subjects. Data protection authorities will fully utilize their powers, as provided for in the General Data Protection Regulation (...)."